

**DUAL STATUTORY COMPLAINT: Systemic POPIA Violations (Sec 8, 9, 19, 26) & Deemed PAIA Refusal (Sec 23) – Complainant: W.W. Matthee**

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Thu, 09 Jul 2026 3:27:21 PM +0200

To "POPIAComplaints"<POPIAComplaints@inforegulator.org.za>

Cc "PAIAComplaints"<PAIAComplaints@inforegulator.org.za>

Bcc "g.boy.willy"<g.boy.willy@gmail.com>

Dear Registrar / Case Management Officer,

LOGGING OF FORMAL COMPLAINT IN TERMS OF THE PROTECTION OF PERSONAL INFORMATION ACT (POPIA) AND THE PROMOTION OF ACCESS TO INFORMATION ACT (PAIA)

Particulars of the Complainant

Full Name: Wilbur William Matthee (Sr.)

Professional Status: Specialist Registered Nurse / Director: Ethic Hawks Forensic Governance & Compliance

Contact Details: 069 635 1435

Purpose of This Submission

This submission constitutes a formal dual complaint filed under the prescribed Form 5 regulatory frameworks. It addresses severe, unmitigated processing failures of special personal information belonging to an unrelated third party, structural system data integrity failures, and a persistent refusal to grant access to critical personal record infrastructure.

Summary of Material Infractions

Complaint 1: Unauthorized Disclosure of Third-Party Special Personal Information (Sections 8, 9, & 26 of POPIA)

The unlawful transmission of a stamped court file belonging to an unrelated third party (Daniel Armstrong), which contains explicit clinical psychiatric and medical diagnoses (including Bipolar II and early vascular dementia). Despite immediate notification to the registry alerting them to the leak, the responsible party has failed to execute mandatory data-breach protocols or remediation steps.

Complaint 2: Failure to Maintain Security & Data Integrity (Section 19 of POPIA)

The ongoing processing of inaccurate, corrupted, and contradictory file indices, characterized by automated system "ghost notifications" that actively prejudice current legal proceedings and file management.

Complaint 3: Deemed Refusal of Personal Records (Section 23 of POPIA & PAIA)

The deliberate, prolonged suppression and refusal to grant access to official digital audio records of administrative and procedural proceedings, constituting a statutory deemed refusal.

Electronic Signature & Statutory Validity (ECTA Anchor)

Take notice that the accompanying Formal Declaration in Lieu of Physical Commissioning is executed under Section 13 of the Electronic Communications and Transactions Act (ECTA), Act 25 of 2002. Due to severe financial attrition directly caused by the institutional and corporate retaliation under investigation, physical commissioning is practically impossible. This digital affirmation carries full regulatory and legal weight.

Index of Compliant Evidence Dossier

The formal complaint is supported by the following consolidated exhibits, organized for structural integrity:

Prescribed Form 5: Completed POPIA/PAIA Complaint Form.

Annexure A1: Formal notification log to the registry regarding the third-party data leak.

Annexure A2: Evidence exhibit of the exposed third-party special personal information (Armstrong record).

Annexures A3 – A10: Comprehensive email chains, system logs of automated ghost notifications, and formal record requests demonstrating the deemed refusal.

Please acknowledge receipt of this submission and allocate a formal case reference number at your earliest convenience. Due to the ongoing exposure of sensitive medical histories belonging to a vulnerable third party, expedited prioritization is respectfully requested.

Yours faithfully,  
Wilbur Matthee

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### 3 Attachment(s)

EH\_Wilbur\_Matthee\_POPIA\_PAI...  
5.1 MB

FORM-5-COMPLAINT-REGARDI...  
143.7 KB

InfoRegSA-PAIA-Form05-Reg10...  
332.6 KB